

---

THIRD READING

---

Bill No: ACA 8  
Author: Wilson (D), et al.  
Amended: 6/20/24 in Senate  
Vote: 27

---

SENATE PUBLIC SAFETY COMMITTEE: 4-1, 6/11/24  
AYES: Wahab, Bradford, Skinner, Wiener  
NOES: Seyarto

SENATE ELECTIONS & C.A. COMMITTEE: 6-0, 6/18/24  
AYES: Blakespear, Allen, Menjivar, Newman, Portantino, Umberg  
NO VOTE RECORDED: Nguyen

SENATE APPROPRIATIONS COMMITTEE: 5-1, 6/26/24  
AYES: Caballero, Ashby, Becker, Bradford, Wahab  
NOES: Seyarto  
NO VOTE RECORDED: Jones

ASSEMBLY FLOOR: 68-4, 9/13/23 - See last page for vote

---

**SUBJECT:** Slavery

**SOURCE:** 10P Program  
A New Way of Life  
Abolish Slavery National Network  
ACLU California Action  
Aging People in Prison Human Rights Campaign  
All of Us or None; Anti-Recidivism Coalition  
Anti-Violence Safety and Accountability Project  
ASCRIBE; Asian Prisoner Support Committee  
California Lawyers for the Arts  
Coalition for a Just and Equitable California  
Coalition to Abolish Slavery and Trafficking  
Communities United for Restorative Youth Justice  
EDIFYE

Freedom United  
GLIDE Foundation  
Homies Unidos  
Impact Justice  
Indivisible  
Just Cities  
Legal Aid at Work  
Legal Services for Prisoners with Children  
March On  
Norcal Resist  
Pride in Truth  
Prison from the Inside Out  
Represent Justice  
Sister Warriors Freedom Coalition  
Starting Over, Inc.  
The Love We Don't See  
TimeDone  
Village Advocates  
Youth Leadership Institute

---

**DIGEST:** This constitutional amendment prohibits involuntary servitude, prohibits the California Department of Corrections and Rehabilitation (CDCR) or a local entity from punishing an incarcerated person for refusing a work assignment, and clarifies that its provisions do not prohibit CDCR or a local entity from awarding credits to an incarcerated person who voluntarily accepts a work assignment.

**ANALYSIS:** Existing federal law states that neither slavery nor involuntary servitude, except as a punishment for crime whereof the party shall have been duly convicted, shall exist within the United States, or any place subject to their jurisdiction. (U.S. Const., 13th Amend.)

Existing state law:

- 1) Prohibits slavery. (Cal. Const., art. I, § 6)
- 2) Prohibits involuntary servitude except to punish crime. (Cal. Const., art. I, § 6)
- 3) Authorizes the Secretary of CDCR to enter into contracts with public entities, nonprofit or for profit organizations, and businesses for the purpose of

conducting programs which use the labor of incarcerated individuals. (Cal. Const., art. XIV, § 5)

- 4) Authorizes CDCR to employ incarcerated individuals for the rendering of services that are needed by the state or any political subdivision thereof, including any county, district, city, school or other public use, or for use by the federal government, or any agency or department thereof, or that may be needed for use by the government of any other state, or any department, agency, or corporation thereof, and allows CDCR to enter into contracts for this purpose. (Penal (Pen.) Code, § 2701, subd. (a))
- 5) Allows CDCR to employ incarcerated individuals for the rendering of emergency services for the preservation of life or property within the state, whether that property is owned by public entities or private citizens, when a county level state of emergency has been declared due to a natural disaster and the local governing board has requested assistance. (Pen. Code, § 2701, subd. (b))
- 6) Provides that CDCR require every able-bodied incarcerated individual imprisoned in any state prison as many hours of faithful labor in each day and every day during the person's term of imprisonment as is prescribed by the rules and regulations of the Secretary. (Pen. Code, § 2700)
- 7) States that one of the purposes of the Prison Industry Authority (PIA) is to operate a work program for incarcerated individuals which will ultimately be self-supporting by generating sufficient funds from the sale of products and services to pay all the expenses of the program, and one which will provide goods and services which are or will be used by CDCR, thereby reducing the cost of its operation. (Pen. Code, § 2801, subd. (c))
- 8) Establishes a minimum wage. Requires the Director of Finance to calculate and adjust the minimum wage annually, as specified. (Labor Code, § 1182.12)
- 9) Makes it a felony to hold, or attempt to hold, any person in involuntary servitude, or assumes, or attempts to assume, rights of ownership over any person, or who sells, or attempts to sell, any person to another, or receives money or anything of value, in consideration of placing any person in the custody, or under the power or control of another, or who knowingly aids and assists in any manner anyone doing any of those things. (Pen. Code, § 181)

- 10) Establishes the crime of human trafficking if a person deprives or violates the personal liberty of another with the intent to obtain forced labor or services, and makes punishable by imprisonment in the state prison for 5, 8, or 12 years and a fine of not more than \$5,000. (Pen. Code, § 236.1, subd. (a))

This constitutional amendment:

- 1) Prohibits slavery and involuntary servitude.
- 2) Prohibits CDCR or a local entity from punishing an incarcerated person for refusing a work assignment
- 3) Clarifies that its provisions do not prohibit CDCR or a local entity from awarding credits to an incarcerated person who voluntarily accepts a work assignment.

## **Background**

The Thirteenth Amendment of the U.S. Constitution was ratified in 1865 and prohibited slavery and involuntary servitude. However, an exception was allowed if involuntary servitude was imposed as punishment for a crime. Article I, section 6, of the California Constitution contains the same prohibitions on slavery and involuntary servitude and the same exception for involuntary servitude as punishment for crime. The California Supreme Court has interpreted the prohibition on slavery and involuntary servitude contained in Article I, section 6 of the California Constitution to be coextensive with the protection afforded by the Thirteenth Amendment. (*Moss v. Superior Court* (1998) 17 Cal.4th 396, 418)

This constitutional amendment amends the state Constitution to prohibit involuntary servitude. This constitutional amendment also prohibits CDCR or a local entity from punishing an incarcerated person for refusing a work assignment, and clarifies that its provisions do not prohibit CDCR or a local entity from awarding credits to an incarcerated person who voluntarily accepts a work assignment. Passage of this constitutional amendment by the Legislature would place this constitutional amendment on the ballot to be decided by the voters.

**FISCAL EFFECT:** Appropriation: No   Fiscal Com.: Yes   Local: No

**SUPPORT:** (Verified 6/25/24)

10P Program (co-source)

A New Way of Life (co-source)  
Abolish Slavery National Network (co-source)  
ACLU California Action (co-source)  
Aging People in Prison Human Rights Campaign (co-source)  
All of Us or None (co-source)  
Anti-Recidivism Coalition (co-source)  
Anti-Violence Safety and Accountability Project (co-source)  
ASCRIBE (co-source)  
Asian Prisoner Support Committee (co-source)  
California Lawyers for the Arts (co-source)  
Coalition for a Just and Equitable California (co-source)  
Coalition to Abolish Slavery and Trafficking (co-source)  
Communities United for Restorative Youth Justice (co-source)  
EDIFYE (co-source)  
Freedom United (co-source)  
GLIDE Foundation (co-source)  
Homies Unidos (co-source)  
Impact Justice (co-source)  
Indivisible (co-source)  
Just Cities (co-source)  
Legal Aid at Work (co-source)  
Legal Services for Prisoners with Children (co-source)  
March On (co-source)  
Norcal Resist (co-source)  
Pride In Truth (co-source)  
Prison from the Inside Out  
Represent Justice (co-source)  
Sister Warriors Freedom Coalition (co-source)  
Starting Over, Inc. (co-source)  
The Love We Don't See (co-source)  
TimeDone (co-source)  
Village Advocates (co-source)  
Youth Leadership Institute (co-source)  
A.B.O. Comix  
Alliance for Boys and Men of Color  
Alliance of Californians for Community Empowerment Action  
American Redress Coalition of California Bay Area  
Arts for Healing and Justice Network  
Asian Americans and Pacific Islanders for Civic Empowerment  
Bend the Arc: Jewish Action  
Black Equity Collective

Black Women Organized for Political Action  
California Black Chamber of Commerce  
California Black Power Network  
California Faculty Association  
California for Safety and Justice  
California Immigrant Policy Center  
California Lawyers for the Arts  
California National Organization for Women  
California Native Vote Project  
California Public Defenders Association  
California Reparations Task Force Members Dr. Cheryl Grills, Lisa Holder, and Don Tamaki  
California Teachers Association  
Californians for Safety and Justice  
Californians United for A Responsible Budget  
Caravan 4 Justice  
Catalyst California  
Children's Defense Fund - CA  
City and County of San Francisco, Board of Supervisors  
Coalition on Homelessness, San Francisco  
Community Interventions  
County of Los Angeles Board of Supervisors  
Culver City Democratic Club  
Ella Baker Center for Human Rights  
Emend the Mass Media Group  
Empowering Women Impacted by Incarceration  
Equal Justice Society  
Faith in Action East Bay  
Families Inspiring Reentry & Reunification 4 Everyone  
Free Indeed Reentry Project, Inc.  
Freedom 4 Youth  
Freedom Within Project  
Friends Committee on Legislation of California  
Grace Cathedral, San Francisco  
GRIP Training Institute  
Haiti Action Committee  
HavMoneyHavHeart LLC  
Healthright 360  
Honoring Resilience  
Humane Prison Hospice Project  
IKAR

Initiate Justice  
Initiate Justice Action  
Inland Empire United  
Interfaith Coalition for Justice in Our Jails  
Interfaith Movement for Human Integrity  
Kehilla Community Synagogue  
Lawyers' Committee for Civil Rights of the San Francisco Bay Area  
League of Women Voters of California  
Live Free California  
Multi-faith ACTION Coalition  
National Volunteer Council on Freedmen Affairs  
Pacifica Social Justice  
Planting Justice  
Prison Law Office  
Prison Yoga + Meditation  
Riverside All of Us or None  
Rosen Bien Galvan & Grunfeld, LLP  
San Francisco Public Defender  
Santa Monica Democratic Club  
SEIU California  
Showing Up for Racial Justice Bay Area  
Smart Justice California  
Southeast Asia Resource Action Center  
Starting Over  
Starting Over Strong  
The CROP Organization  
The Greenlining Institute  
TheatreWorkers Project  
Transitions Clinic Network  
UC Berkeley's Underground Scholars Initiative  
UnCommon Law  
Western Center on Law & Poverty  
Why Not Prosper, Inc.  
Worksafe  
Multiple Individuals

**OPPOSITION:** (Verified 6/25/24)

None received

**ARGUMENT IN SUPPORT:** Several organizations, including ACLU California Action, California Immigrant Policy Center, Catalyst California, Ella Baker Center for Human Rights, Initiate Justice, Legal Services for Prisoners With Children, Sister Warriors Freedom Coalition, and the Western Center on Law & Poverty, write:

Despite the Thirteenth Amendment outlawing slavery and involuntary servitude, the California Constitution states, “Involuntary servitude is prohibited except to punish crime.”... But Black’s law dictionary defines involuntary servitude as “when a person is forced to work against his or her will. Slavery.” In short, involuntary servitude is a form of slavery. This forced labor exception has led to the exploitation of thousands of individuals and had a deep effect on a disproportionate number of those of African, Indigenous, and Indigenous/Latina descent.

The legacy of slavery and forced labor runs deep in California’s history, from the 1850 Indian Indenture Act that criminalized everyday behavior and wrote racist language into California law, to Africans and African Americans who were forced to mine for gold and help build prisons. Though California entered the union as a “free” state, there were more than 1,000 enslaved African Americans as well as thousands of enslaved Indigenous people in California at a time when the total population was just 100,000.

...

Incarcerated people in California today are still forced to follow orders to work or face cruel treatment for any work absences: physical violence, solitary confinement, denial of phone calls and family visits, and disciplinary action that results in longer prison terms. Punishments are often issued even when absences are due to illness or injuries sustained through the work itself.

More than 94,000 Californians are currently enslaved in state prison. African Americans account for 28% of the prison population despite making up less than 6% of California’s overall population. Although no courts explicitly order forced labor as a part of criminal sentencing, it’s standard practice to force incarcerated people to perform labor.



The vast majority of incarcerated people want to work, further their education, and participate in rehabilitative programs — all of which facilitate personal transformation and successful reintegration. Incarcerated people often face a dilemma: report to CDCR-mandated work assignments or report to court-mandated rehabilitative programs such as Narcotics Anonymous. If they follow orders to work, their record will show they failed to complete programming as required. If they do not show up to their shifts, they receive a rules violation (at minimum). Either choice leads to one result: unjust disciplinary action.

Involuntary servitude leads to dangerous work conditions with virtually no accommodations, whether in CDCR factory settings or ever-increasing wildfires outside the prison. ...

The psychological effects of slavery and involuntary servitude are well documented throughout the history of California. People who suffer under these conditions develop long-term mental health conditions, including trauma, loss of self-esteem, and the stigma and shame of dehumanization.

ACA 8 is part of a national movement to ban slavery in all its forms.  
...

It is a moral imperative that California dissolve the remnants of slavery from our constitution. The End Slavery in California Act would give voters the opportunity to amend Article 1, Section 6 of the California Constitution to prohibit slavery and involuntary servitude without exception.

ASSEMBLY FLOOR: 68-4, 9/13/23

AYES: Addis, Aguiar-Curry, Alanis, Alvarez, Arambula, Bains, Bauer-Kahan, Bennett, Berman, Boerner, Bonta, Bryan, Calderon, Juan Carrillo, Wendy Carrillo, Cervantes, Chen, Connolly, Flora, Mike Fong, Friedman, Gabriel, Garcia, Gipson, Grayson, Haney, Hart, Holden, Hoover, Irwin, Jackson, Jones-Sawyer, Kalra, Lee, Low, Lowenthal, Maienschein, McCarty, McKinnor, Muratsuchi, Stephanie Nguyen, Ortega, Pacheco, Papan, Pellerin, Petrie-Norris, Quirk-Silva, Ramos, Rendon, Reyes, Luz Rivas, Rodriguez, Blanca Rubio, Santiago, Schiavo, Soria, Ting, Valencia, Villapudua, Waldron, Wallis, Ward, Weber, Wicks, Wilson, Wood, Zbur, Robert Rivas

NOES: Megan Dahle, Dixon, Gallagher, Sanchez

NO VOTE RECORDED: Davies, Essayli, Vince Fong, Lackey, Mathis, Jim  
Patterson, Joe Patterson, Ta

Prepared by: Stephanie Jordan / PUB. S. /  
6/26/24 20:19:53

\*\*\*\* **END** \*\*\*\*